

Development Office

STAFF REPORT - SUMMATION

O'BRIEN SUBDIVISION (County)

Expedited Preliminary Plat Process

CASE NUMBER: UDC-15-00417

SUBDIVISION CODE: OBRN01

PREPARED BY: Stephanie Lowe

MEETING DATES: August 3, 2015 – Planning Commission
August 10, 2015 – City Council

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff:

- Complete Application
- Preliminary Plat Map
- Final Plat Map
- Waiver request for Environmental Impact Assessment, Transportation Network Plan, and Transportation and Drainage Studies
- Revised maps submitted (not accepted for final packet)

RECOMMENDATION: The Development office recommends approval of the Expedited County Preliminary Plat, with the following condition, advancing the Final Plat to the Governing Body:

1. Address mapping requirements identified in Development Department review.

PLANNING COMMISSION UPDATE (8/3/2015): At its regular meeting on August 3, 2015, the Planning Commission voted to approve the O'Brien Subdivision Expedited County Preliminary Plat by a vote of 6 to 0 with the following conditions, advancing the Final Plat to the Governing Body:

1. Address mapping requirements identified in Development Department review.

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O'BRIEN SUBDIVISION (County)

Expedited Preliminary Plat Process

CASE NUMBER: UDC-15-00417 **SUBDIVISION CODE:** OBRN01
PREPARED BY: Stephanie Lowe
MEETING DATES: August 3, 2015 – Planning Commission
August 10, 2015 – City Council

OWNER: Nellie A. O'Brien 307.630.2847
5009 Hilltop Avenue
Cheyenne, WY 82009

AGENT: Casey Palma 307.634.7273
Steil Surveying Services, LLC
1102 W. 19th Street
Cheyenne, WY 82001

PROJECT: O'Brien Subdivision Expedited Plat

LOCATION:

1. Legal Description: a replat of a portion of the south ½ Tract 49, Allison Tracts, Laramie County, Wyoming
2. Location: North of and adjacent to E. College Drive, east of S. Greeley Highway
3. Address: 106 E College Drive, Laramie County, Wyoming

SIZE: Total site: 1.15 acres

CURRENT ZONING: County CB – Community Business

PROPOSED ZONING: County CB – Community Business

EXISTING LAND USE: Residential

PROPOSED LAND USE: Commercial

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Low-density residential	County CB	County
South	Vehicle salvage yard	County CB	County
East	Undeveloped/Agriculture	County CB	County
West	Vacant	County CB	County

EXPEDITED REVIEW:

This plat is being pursued as an expedited application. An expedited review process is a concurrent preliminary and final plat. A project may be eligible for an expedited review when the proposal contains no significant planning, design and engineering issues. In other words proposals that meet all applicable regulations and generally meet the review criteria for preliminary and final plat may be eligible for the concurrent preliminary and final plat process.

Staff recommends allowing the plat to proceed as an expedited application with the following condition:

1. Address mapping requirements identified in Development Department review.

EXECUTIVE SUMMARY:

This application is for an Expedited Plat located within a mile of Cheyenne City Limits in the County located at the northeast corner of the intersection of South Greeley Highway and East College Drive. The zoning is currently CB Community Business and with this replat, there is not any expected immediate redevelopment of the area. The purpose of this replat is to subdivide this 1.15 acre lot into two smaller parcels, 17,006 for the existing residential use and 33.045 square feet for future commercial development.

Due to meeting the criteria set for in Section 2.1.2.d of the Cheyenne UDC, staff recommends approval of the preliminary plat with the following conditions, advancing it to the Governing Body:

1. Address mapping requirements identified in Development Department review.

PLAT DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed preliminary plat, the Staff, Planning Commission and City Council shall use the following criteria:

PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in the PlanCheyenne.*

PlanCheyenne has designated this area as Community Business for its future land use. Currently there is a small house on the very west side of the property; the rest of the property is vacant and has a proposed commercial development as stated in the Waiver Request.

PLANNING - *The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities.*

The purpose of this subdivision is to separate the existing residential portion of this property from a future commercial development on the eastern portion of this property. There are no new streets, open spaces, or public facilities proposed with this lot split. Although this site is near a substantial intersection with nearly 10,000 cars a day on College Drive and 20,000 cars a day on this portion of South Greeley there is little existing development. The intersection includes one gas station and automobile salvage yard.

In general the transportation network is deficient in this area with lots of land and few streets. Ultimately this would typically limit development options in the area. Addressing the transportation network with this plat may not be appropriate because the plat is small and there is no proposed development.

STANDARDS - *Division of land meets the purposes, intent, and all applicable standards in Article 4.*

This land is being developed in the County, and there are no community facility fees due to the City. Fees may be due if the property annexes at some point in the future. The transportation network is well established in this area of the County and both properties have easy access to East College Drive. When the eastern portion of this property is developed into commercial use in the future, there should be enough room for open space requirements. There is an existing Greenway path within 1,200 feet.

PHASING - *Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned.*

No phasing is proposed with this project.

STUDIES - *The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts.*

The applicant has requested a waiver from all associated studies due to the following:

- a. Site is located within the county;
- b. The existing residential uses are to remain unchanged;
- c. There is no planned development of the site is proposed at this time; and
- d. Any new commercial development will require more detailed plans and analyses at that time.

The County Engineer concurred with the deferral of studies until time of site plan.

ZONING - *All proposed lots shall be buildable lots according to the existing or proposed zoning district standards, and result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district. All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance.*

All proposed lots will be buildable according to the current zoning district. As the lots are currently configured, the replat will not create any non-conforming lots. When the future eastern lot is developed the Laramie County Planning Department will review the project for compliance with the County zoning regulations.

SURROUNDING DEVELOPMENT - *The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property.*

Because no additional building is planned at this time, no undue influence will be created by separating the lots.

REVIEWING AGENCIES WITH COMMENTS:

- City Surveyor (Jack Studley) **(FYI)**
 - o Boundary data and legal descriptions appear in order.
- Laramie County Assessor (Clarice Blanton)
 - o The title block should be more specific as to what portion of the south 1/2 of Tract 49 is being re-platted i.e. the East 344.57' of the South 144.47' of Tract 49.
 - o The parcel as described in the Dedication is not fully shown. The POB, etc. is not evident.
- WyDOT (Randy Griesbach)
 - o Access spacing requirement between residential and commercial is 330 ft. The existing residential access is located in a poor location within the left and right turn lanes at South Greeley Highway. It would be beneficial to close the residential access and include an access easement across the commercial property to serve the residential lot from an access near the east end of the commercial property.
- Laramie County Planning & Development (Brett Walker)
 - o The County requests that certain language be omitted in the dedication statement on this plat. Specifically, the third paragraph that reads:
"The undersigned does hereby further acknowledge that this final plat is being submitted to the Governing Body of the City of Cheyenne for approval pursuant to W.S. 34-12-103 and the undersigned, their legal successors and/or assigns do forever covenant and agree that, following the approval of this plat by said Governing Body, no alteration, amendment or vacation of this plat, in whole or in part, shall be valid unless

- such alteration, amendment or vacation is approved by said Governing Body.”
 - This statement directly violates established state law, to wit: City of Cheyenne v. Bd. of Cnty. Comm’rs of Cnty. of Laramie, 2012 WY 156, 18, 290 P.3d 1057, 1062 (Wyo. 2012) The County, therefore, objects to inclusion of this dedicatory statement asserting that such a statement is an unlawful imposition upon the dedicator, is unenforceable and may represent an unconstitutional condition or exaction. See, Dolan v. City of Tigard, 512 U.S. 374, 114 S. Ct. 2309, 129 L. Ed. 2d 304 (1994) and, Nollan v. California Coastal Comm’n, 483 U.S. 825, 107 S. Ct. 3141, 97 L. Ed. 2d 677 (1987).
- Development (Stephanie Lowe)
 - Remove note regarding Administrative Replat.
 - Remove duplicative Vacation Statement; evaluate for accuracy.
 - Ensure all signature dates on plat are 2015.

REVIEWING AGENCIES WITHOUT COMMENTS:

- Board of Public Utilities (Linda Gunter)
- Building Department (Tom Scranton)
- Charter (Kurt Quinlivan)
- Cheyenne Light Fuel & Power (Jack Whyatt)
- Development (Brandon Cammarata)
- Engineering – Drainage (Mike Vinson)
- Engineering – General / Traffic (Nathan Beauheim)
- Engineering – Tech/GIS (Gary Stogsdill)
- Environmental Health Dept (Roy Kroeger)
- Fire Department (Jim Schamerhorn)
- Laramie County School District #1 (Chris Hout)
- Parks & Rec (Teresa Moore)
- Urban Planning (Matt Ashby)

REVIEWING AGENCIES NOT RESPONDING:

- 911/Dispatch (Glen Crumpton)
- 911/Emergency Management (Rob Cleveland)
- Century Link (Bob Bates)
- County Attorney (Mark Voss)
- Dept of Energy / WAPA (Brian Pederson, Tracy Rogers)
- High West Energy (Lloyd Sisson)
- South Cheyenne Water & Sewer (Dena Hansen)

OTHER COMMENTS RECEIVED:

- None

Encl: Preliminary Plat Map
 Final Plat Map
 Aerial Map

cc: Owner
 Agent/Applicant
 File

Approved as to
form only:

Wah

Date: 7/20/15

RESOLUTION NO. _____

ENTITLED:

"A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A COUNTY FINAL PLAT FOR O'BRIEN SUBDIVISION, A REPLAT OF A PORTION OF THE S½ OF TRACT 49, ALLISON TRACTS, LARAMIE COUNTY, WYOMING (LOCATED NORTH OF AND ADJACENT TO E. COLLEGE DRIVE, EAST OF S. GREELEY HIGHWAY)."

WHEREAS, Nellie A. O'Brien, has subdivided said land in accordance with the statutes in such cases made and provided; and

WHEREAS, Nellie A. O'Brien, the owner of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots and block; and

WHEREAS, the above described subdivision plat is within one (1) mile of the boundaries of the City of Cheyenne, Wyoming, and therefore, governing body approval is required in accordance with W.S. 34-12-103; and

WHEREAS, the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the governing body; and the plat has been duly executed by the Development Office; and

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as O'Brien Subdivision, a replat a portion of the S½ of Tract 49, Allison Tracts, Laramie County, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF

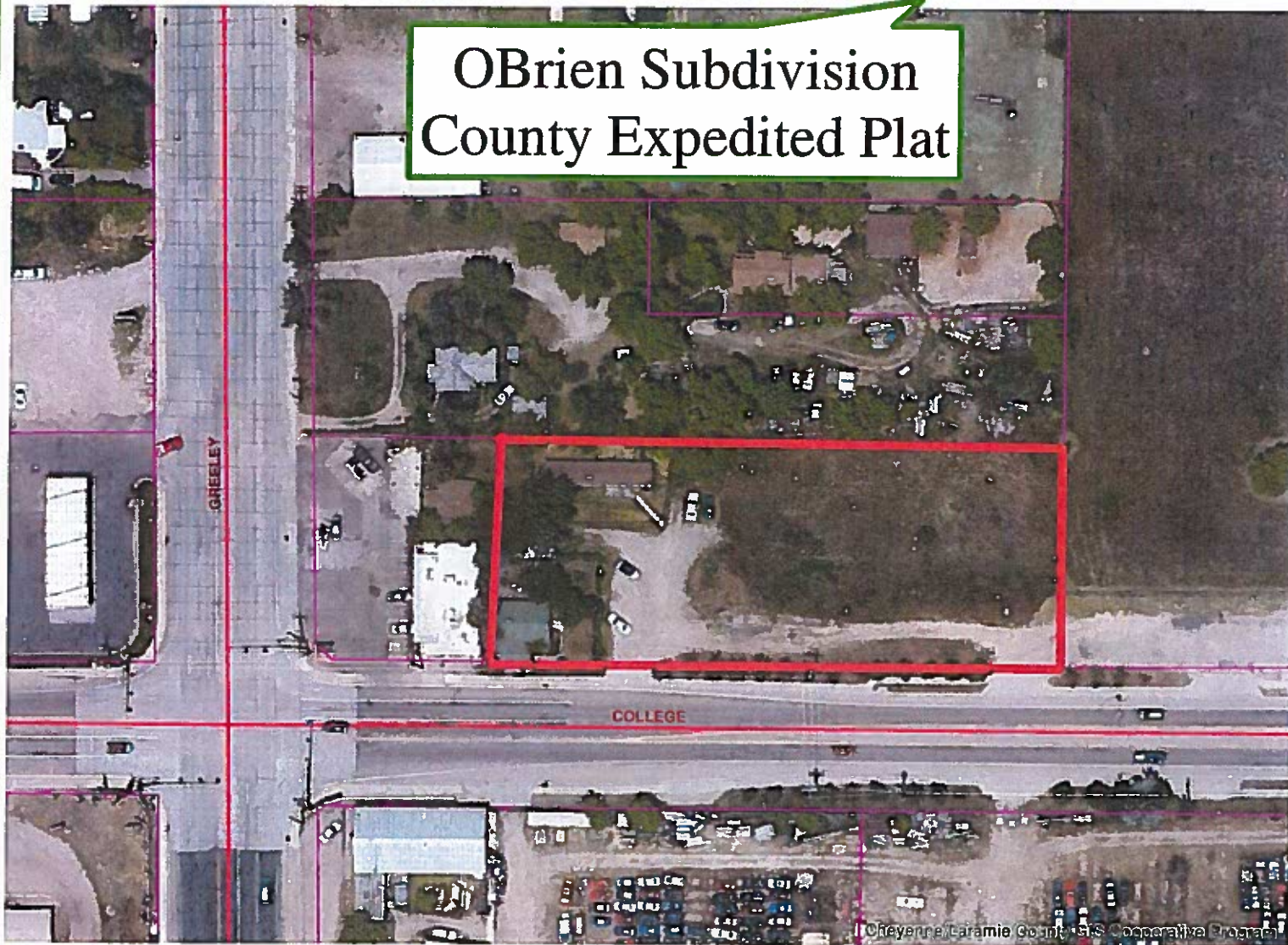
_____, 2015.

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

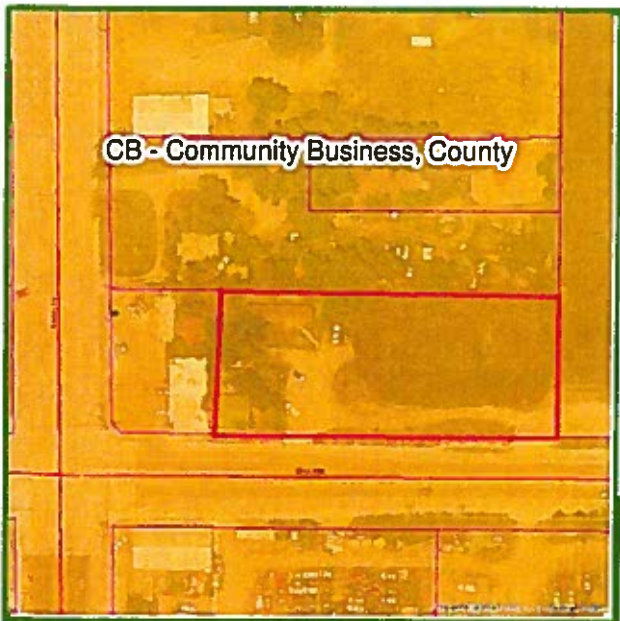
OBrien Subdivision County Expedited Plat



Applicant: Nellie A. O'Brien
Agent: Casey Palma, Steil Surveying Services
Application Number
Expedited Plat: UDC-15-00417

0 150 300
Feet

Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS involves its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use

